

1 AN ACT relating to the provision of menstrual products in schools, making an
2 appropriation therefor, and declaring an emergency.

3 *Be it enacted by the General Assembly of the Commonwealth of Kentucky:*

4 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 158 IS CREATED TO
5 READ AS FOLLOWS:

6 *The General Assembly hereby finds and declares that:*

7 *(1) Access to menstrual products is a matter of public health;*

8 *(2) Inadequate access contributes to school absenteeism, academic disparities, and*
9 *disproportionate impacts on students from low-income households;*

10 *(3) Provision of menstrual products in schools supports Kentucky's obligations*
11 *under Title IX and promotes safe, healthy learning environments; and*

12 *(4) Menstrual products are essential health items necessary for the wellbeing,*
13 *dignity, and full participation of Kentucky students.*

14 ➔SECTION 2. A NEW SECTION OF KRS CHAPTER 158 IS CREATED TO
15 READ AS FOLLOWS:

16 *(1) All public schools or public charter schools that include any of grades six (6)*
17 *through twelve (12) shall make at least one (1) type of menstrual product*
18 *available in:*

19 *(a) Each school building for use by students at no cost; and*

20 *(b) At least fifty percent (50%) of the combined total of the female, handicap,*
21 *unisex, or family bathrooms designated for student use in each school*
22 *building.*

23 *(2) Each local board of education or public charter school board of directors shall*
24 *adopt policies:*

25 *(a) Establishing procedures for the distribution of age-appropriate menstrual*
26 *products for use by students and related guidance regarding the safe and*
27 *healthy use of the products; and*

1 (b) Prohibiting the resale, redistribution, or misuse of menstrual products
2 distributed to students in accordance with this section.

3 (3) Each local board of education and public charter school board of directors shall
4 adopt accountability measures to ensure consistent access to menstrual products,
5 including:

6 (a) Annual reporting to the department on the number and type of menstrual
7 products purchased, distributed, and remaining in inventory by June 15 of
8 each year;

9 (b) A restocking schedule ensuring that products in required bathrooms are
10 checked and replenished no less than once every two (2) weeks or as needed
11 based on usage; and

12 (c) A point-of-contact in each school building responsible for compliance.

13 (4) The department shall have the authority to issue supplemental guidance and
14 compliance reminders.

15 (5) All guidance and educational materials developed under subsection (4) of this
16 section shall:

17 (a) Be medically accurate, evidence-based, and consistent with current public
18 health research;

19 (b) Include information on safe use of tampons and menstrual cups, including
20 risks and symptoms of toxic shock syndrome;

21 (c) Be culturally competent and inclusive of students with diverse
22 developmental needs, gender identities, and language access needs; and

23 (d) Be made available to students and their families in print or electronic form.

24 (6) (a) Access to menstrual products as required under this section shall be
25 considered part of ensuring equal educational opportunity under federal
26 Title IX requirements.

27 (b) Local boards of education and public charter school boards of directors

1 shall ensure that students are not denied educational access, disciplined, or
2 otherwise penalized due to menstrual-related needs or lack of access to
3 menstrual products.

4 (c) The department shall issue guidance to support Title IX coordinators in
5 implementing menstrual-access protections and responding to related
6 complaints.

7 ➔SECTION 3. A NEW SECTION OF KRS CHAPTER 158 IS CREATED TO
8 READ AS FOLLOWS:

9 (1) The department is authorized to negotiate contracts, purchase products on behalf
10 of local school districts, and require that products purchased under this program
11 meet minimum health, safety, and quality standards.

12 (2) The department shall distribute funding for menstrual products using a fairness-
13 weighted, tiered formula designed to reduce total statewide costs while prioritizing
14 districts with the highest levels of economic disadvantage. The formula shall
15 include the following three (3) tiers:

16 (a) Tier 1: Districts in which seventy percent (70%) or more of students qualify
17 for free or reduced-price lunch shall receive one hundred percent (100%)
18 reimbursement for product costs, and shall receive dispensers at no cost
19 through the state contract, and up to two cents (\$0.02) per student for waste-
20 management needs;

21 (b) Tier 2: Districts in which fifty percent (50%) to sixty-nine percent (69%) of
22 students qualify for free or reduced-price lunch shall receive fifty percent
23 (50%) reimbursement for product costs, and shall receive dispensers at no
24 cost through the state contract; and

25 (c) Tier 3: Districts in which less than fifty percent (50%) of students qualify
26 for free or reduced-price lunch shall receive twenty-five percent (25%)
27 reimbursement for product costs and may opt in to the department's

- 1 statewide purchasing contract to obtain reduced-price products.
- 2 (3) A district's share of costs not reimbursed under this section may be paid from
3 existing school health funds, family resource and youth services centers
4 allocations, or local board funds.
- 5 (4) The department shall ensure that:
- 6 (a) Total annual program costs shall not exceed two million dollars
7 (\$2,000,000) through bulk purchasing and the use of need-based
8 reimbursements rather than automatic base grants;
- 9 (b) Funds are used solely for the purpose of meeting statutory compliance
10 under Section 2 of this Act; and
- 11 (c) No district receives more funding than necessary to meet the minimum
12 access standards established in Section 2 of this Act.
- 13 (5) The department shall submit an annual report by June 30 of each year to the
14 Legislative Research Commission for referral to the Interim Joint Committee on
15 Education detailing:
- 16 (a) District-level distributions made under each tier;
17 (b) Cost savings achieved through state procurement measures;
18 (c) Statewide and district-level expenditures relating to menstrual products;
19 and
- 20 (d) Any recommendations for improving cost efficiency, equity, or program
21 administration of the provision of menstrual products.

22 ➔Section 4. KRS 158.007 is amended to read as follows:

23 As used in KRS Chapter 158 unless the context requires otherwise:

- 24 (1) "Advanced placement" or "AP" means a college-level course that incorporates all
25 topics and instructional strategies specified by the College Board on its standard
26 syllabus for a given subject area and is licensed by the College Board.[-]
- 27 (2) "Advanced science and mathematics" means Advanced Placement or AP biology,

- 1 calculus, chemistry, computer science, environmental science, and physics, and
2 International Baccalaureate or IB biology, chemistry, computer science,
3 environmental systems, mathematical studies, further mathematics, and physics;[.]-]
- 4 (3) "Board" means the Kentucky Board of Education;[.]-]
- 5 (4) "College Board Advanced Placement examination" means the advanced placement
6 test administered by the College Entrance Examination Board;[.]-]
- 7 (5) "College Board" means the College Entrance Examination Board, a national
8 nonprofit association that provides college admission guidance and advanced
9 placement examinations;[.]-]
- 10 (6) "Core curriculum" means at least one (1) course in science, one (1) course in
11 mathematics, and at least one (1) course in two (2) of the following subject areas:
12 English, social studies, foreign language, and the arts;[.]-]
- 13 (7) "Department" means the Kentucky Department of Education;[.]-]
- 14 (8) "Dual credit" means a college-level course of study developed in accordance with
15 KRS 164.098 in which a high school student receives credit from both the high
16 school and postsecondary institution in which the student is enrolled upon
17 completion of a single class or designated program of study;[.]-]
- 18 (9) "Dual enrollment" means a college-level course of study developed in accordance
19 with KRS 164.098 in which a student is enrolled in a high school and
20 postsecondary institution simultaneously;[.]-]
- 21 (10) "International Baccalaureate" or "IB" means the International Baccalaureate
22 Organization's Diploma Programme, a comprehensive two (2) year program
23 designed for highly motivated students;[.]-]
- 24 (11) "Kentucky Virtual High School" means secondary-level instructional programs or
25 courses offered by the Kentucky Department of Education through the Internet and
26 other on-line, computer-based methods;[.]-]
- 27 (12) "Kentucky Virtual University" means a college-level instructional program offered

1 by the Council on Postsecondary Education through the Internet or other on-line,
2 computer-based methods; and[-.]

3 **(13) "Menstrual product" means a tampon, panty liner, menstrual cup, pad, or any**
4 **other similar tangible personal property designed for use in connection with the**
5 **human menstrual cycle, but does not include any items of clothing or "grooming**
6 **and hygiene products" as defined in KRS 139.472.**

7 ➔Section 5. There is hereby appropriated General Fund moneys in the amount of
8 \$2,000,000 in each fiscal year of the 2026-2028 fiscal biennium to the Learning and
9 Results Services budget unit within the Department of Education to provide menstrual
10 products for students, as set forth in Sections 1 to 4 of this Act.

11 ➔Section 6. Whereas providing timely funding for the access and provision of
12 menstrual products in schools in the Commonwealth is important for the citizens of this
13 state, an emergency is declared to exist, and this Act takes effect July 1, 2026.